

Baboo Lal Sharma v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 January 2023 · Writ - C No. 2068 of 2023 · **Writ disposed; clause 6.5 objection to be decided; recovery stayed until then.**

HEADNOTE

Writ against a notice demanding Rs. 3,46,719 as electricity dues disposed of on the licensee's statement that respondent no. 4 is competent under clause 6.5 of the Electricity Supply Code, 2005. That respondent must pass a speaking order within four weeks on the objection already sent on 22.11.2022. The impugned recovery stays in abeyance until the objection is decided and thereafter follows that decision.

FACTUAL SUMMARY

Baboo Lal Sharma, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., was served with a notice dated 12 November 2022 issued by respondent no. 4 demanding Rs. 3,46,719 towards electricity dues. He maintained that the bill raised in his name was not correct. On 22 November 2022 he sent objections against that demand by registered post. He then filed a writ asking the Allahabad High Court to direct the respondents to decide those objections.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending objection to electricity dues decided under clause 6.5

HOLDING

Where the consumer has already objected to an electricity bill and the recovery notice founded on it, and the licensee accepts that respondent no. 4 is competent to decide the matter under clause 6.5 of the Electricity Supply Code, 2005, the writ is disposed of by directing that respondent to pass a speaking order on the objection dated 22.11.2022 within four weeks of receiving a copy of the court's order together with the objection. Until the objection is decided the impugned recovery remains in abeyance, and thereafter it abides by the decision on the objection. ¶ 4-6

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The objection dated 22.11.2022 was already on record. The Court did not examine the bill and directed respondent no. 4 to pass a speaking order on it within four weeks, with recovery kept in abeyance until that order. ¶ 5-6

clause-6.5-alternate-remedy On the licensee's statement that respondent no. 4 is competent under clause 6.5, the writ was disposed by sending the disputed demand to that authority rather than by quashing or affirming the bill. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL AND THE DEMAND OF RS. 3,46,719 WERE CORRECT.
Left to a speaking order by respondent no. 4 on the objection dated 22.11.2022. ¶ 5-6